

HOUSE BILL 771

By Powers

AN ACT to amend Tennessee Code Annotated, Title 69,
Chapter 9, relative to boating permits for exempt
vessels.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 69-9-206, is amended by adding the
following as a new subsection:

(c)

(1) As used in this subsection (c), "exempt vessel" means a vessel that is
exempt from being numbered for identification in this state due only to the vessel
having a valid number awarded to it pursuant to a federally approved numbering
system of another state pursuant to subdivision (a)(2).

(2) A person shall not operate or give permission for the operation of an
exempt vessel on the intrastate waters of this state without first purchasing a
permit for the exempt vessel for use upon such waters within this state.

(3) The initial fee for the permit is seventy-two dollars (\$72.00) and the
permit may be made available for sale through the same means as other
licenses administered by the agency. The fee for the exempt vessel permit must
be made on an annual basis beginning on the date the permit is issued.

(4) All revenue realized from the sale of the exempt vessel permit must
be deposited in the boating safety fund and must be expended solely for the
administration and operation of the commission's programs and responsibilities
under this chapter.

(5) Agents for the issuance and sale of an exempt vessel permit are authorized pursuant to § 70-2-106.

(6) The fish and wildlife commission is authorized to promulgate rules to effectuate this subsection (c) in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, including rules that are necessary for the design, cost, duration, issuance, administration, and sale of the exempt vessel permit. The commission may further adjust the permit fee in accordance with this chapter.

SECTION 2. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.